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MyFitnessPal Privacy Policy

Effective: December 13, 2024

IMPORTANT NOTICE

At MyFitnessPal, Inc. ("MyFitnessPal"), our mission is to help you along your fitness and wellness journey and we want you to know how we collect and use the data that you provide to us over the course of that journey. MyFitnessPal is the myfitnesspal.com website ("**Website**") and MyFitnessPal mobile applications ("**Mobile App**") (which we collectively refer to in this Privacy Policy as the "**Services**"). We encourage you to read this Privacy Policy as well as our terms and conditions of use (referred to throughout as our "**Terms**").

BY USING THE SERVICES, YOU CONSENT TO THE COLLECTION, USE AND TRANSFER OF YOUR PERSONAL DATA FOR PROCESSING IN THE UNITED STATES AS DESCRIBED IN THIS PRIVACY POLICY.

MyFitnessPal and all associated Services and systems, including registration, is housed on servers in the United States. If you are located outside of the United States, please be aware that information we collect (including cookies and device data) will be processed and stored in the United States, a jurisdiction in which the data protection and privacy laws and principles, including your data subject rights, may not offer the same level of protection as those in the country/region where you reside or are a citizen. By using our Services and providing information to us, you consent to the transfer to and processing of the information in the United States and, unless otherwise stated in this Privacy Policy, we use this consent as the legal ground for that data transfer. You may be asked for your explicit consent to this data transfer as part of account creation.

Please read this Privacy Policy carefully, as your access to and use of the Services signifies that you have read, understand and agree to all terms within this Privacy Policy. If you do not agree with any part of this Privacy Policy or our Terms, please do not access or continue to use any of the Services or otherwise submit your Personal Data (defined below) to us.

Note to Residents of the European Union: In order to comply with the requirements of the European General Data Protection Regulation (GDPR) for our European consumers and

users, this Privacy Policy outlines the legal bases on which we process your Personal Data and provides other information required by the GDPR. Further country/region specific information for our European consumers and users is outlined in the location-specific disclosures section.

Information About Your Personal Data

This Privacy Policy relates to data about you, your devices, and your interaction with our Services.

"**Personal Data**" is information that can be used to identify you, directly or indirectly, alone or together with other information. This includes things such as your full name, email address, phone number, device IDs, certain cookie and network identifiers, and "Fitness and Wellness Data."

MyFitnessPal collects, uses, discloses and processes Personal Data as outlined in this Privacy Policy, including to operate and improve the Services and our business; for advertising and marketing; and to provide you with innovative fitness and wellness services, as further described in this Privacy Policy.

We may create de-identified or anonymous data from Personal Data by excluding data components (such as your name, email address, or linkable tracking ID) that makes the data personally identifiable to you, through obfuscation, or through other means. Our use of anonymized and de-identified data is not subject to this Privacy Policy.

How We Collect and Use Personal Data

We collect your Personal Data in a number of ways and for various purposes, including:

1. When you register for an account or interact with our Services

We collect Personal Data when you use or interact with our Services, including when you register for a MyFitnessPal account, purchase a Premium Subscription (including processing of payment), or otherwise use the Services (e.g., browse the content available on the Services), and when you ask us to customize our Services. This Personal Data may include name, photo, username and password, email address, date of birth, gender, payment information and general location data.

2. When you input Fitness and Wellness Data within our Services or use our Services that collect or ingest data from mobile device sensors

"Fitness and Wellness Data" includes data you provide related to your dietary habits, dietary restrictions, fitness activity, fitness goals, lifestyle (e.g., sleeping habits), life events, fitness goals, height, weight, measurements, fitness level, heart rate, sleep data, BMI, biometric data, and similar types of data relating to physiological condition, and activity. We collect this data in order to provide the Services and to tailor features, advertising, and services to your interests and goals, including providing meal suggestions, reporting and analytics, workout plans, and meal planning related services, and product recommendations.

3. When you use or interact with a wearable or other connected device

We also collect Personal Data, including Fitness and Wellness Data, when you use a device that is connected to the Internet, such as heart rate monitors, activity trackers, and other devices or wearables that integrate with the Services. When you use a wearable or connected device or product, we may also collect certain information about the device or product such as serial number, Bluetooth address, UPC, or other device- or purchase-related information.

Note on Apple HealthKit Data

You can choose to connect and share your information with HealthKit and your HealthKit information with MyFitnessPal. The information you provide to HealthKit is then governed by the Apple Terms and Conditions and Privacy Policy. The unique information you choose to send from HealthKit is not used by MyFitnessPal for marketing and advertising or transferred by MyFitnessPal to third parties for marketing and advertising.

Note on Google Health Connect

You can choose to connect and share your information with Health Connect and your Health Connect information with MyFitnessPal. The use of information received from Health Connect will adhere to the Health Connect Permissions Policy, including the Limited Use requirements.

4. When you communicate with us or sign up for promotional materials

We collect Personal Data when you communicate with us or sign up to receive promotional materials or information ("Messages") via email and push notifications.

If you consent to receive Messages, we may use your Personal Data and other information to communicate with you about the MyFitnesssPal Services you have purchased or used; provide you with promotional messages and personalized advertising; to notify you of other features; to notify you of contests, challenges, sweepstakes, and other promotions ("Promotions"); to notify you of Services we think may be of interest to you; and, for other

marketing purposes. You can manage your communication preferences in your account settings.

Please note that regardless of your email settings, we may send you Messages pertaining to the performance of our Services, such as revision of our Terms or this Privacy Policy or other formal communications relating to Services you have purchased or use.

We may use your Personal Data to respond to and address your requests for technical support, questions or complaints about the Services, or any other communication you initiate. This includes accessing your account to address technical support requests.

5. When you participate in special activities, offers, or programs

We may request or otherwise collect Personal Data, including Fitness and Wellness Data when you participate in Promotions, when you participate in surveys, or when you participate in research activities or initiatives ("Research"). This includes Personal Data, such as name, address, email address, telephone number and age and other information that may be appropriate in order to participate in the Research. If you win a Promotion, we also may need to collect certain tax information, waivers and releases, depending on the prize.

We may also launch surveys that ask you to answer questions about a range of topics from Personal Data to brand and product preferences. Promotions or surveys may be run by a MyFitnessPal service provider or co-branded with one of our business partners. In such instances, Personal Data may be collected directly by and/or shared with MyFitnessPal, the service provider, and/or business partner, including for marketing purposes. Each Promotion or survey that treats your Personal Data in a way that differs from this Privacy Policy will identify the privacy policy governing that collection of information in connection with that Promotion or survey.

6. When you engage with our online communities or advertising

We may collect your Personal Data when you engage with our online communities. This includes when you click on advertisements, interact with our social media pages, submit content, or otherwise enter information into comment fields, blogs, or community forums sponsored by or affiliated with MyFitnessPal. Please note that our community forums are public, so we recommend that you exercise care in deciding what information and content you wish to disclose.

7. When you access third party products and services

We may allow you to register and pay for third-party products and services or otherwise interact with another website, mobile application, or Internet location (collectively "**Third**

Party Sites") through our Services, and we may collect Personal Data that you share with Third Party Sites through our Services. When we do so, we will inform you of the further details of how we use your Personal Data.

8. When you connect with us through social media

You may choose to enable, log into, or sign on to the Services through various social media or social networking services, such as Facebook ("Social Networking Service" or "SNS"). When you connect using your SNS accounts, we may collect Personal Data that you have provided to that SNS. For example, when you log in with your Facebook credentials, with your consent, we may collect Personal Data from your Facebook profile that is permitted under Facebook's Terms of Service - such as your email address, profile picture, and friend list. We use this data to provide, enhance, and personalize the Services (e.g., to help connect you with or suggest friends within our Services). If you do not want to provide us with this data, you need to adjust the privacy settings on your SNS account.

9. When we collect data from third parties or publicly-available sources

We may obtain certain data about you from third party sources to help us provide and improve the Services and for marketing and advertising. We may combine your Personal Data with data we obtain from our Services, other users, or third parties to enhance your experience and improve the Services.

10. When we leverage and/or collect cookies, device IDs, Location, data from the environment, and other tracking technologies

We may collect certain Personal Data using cookies and other technologies such as web beacons, device IDs, advertising IDs, geolocation, HTML5 local storage, Flash cookies, and IP addresses. We specifically use browser cookies for different purposes, including cookies that are strictly necessary for functionality and cookies that are used for personalization, performance/analytics, and advertising. Our cookie and device id use section contains more information and options to control or opt-out of certain data collection or uses.

11. When we aggregate or centralize data

We aggregate and centralize Personal Data and Fitness and Wellness Data for purposes of analytics, innovation, and to provide enhanced services to our customers and end-users.

12. When we link you to friends across platforms

Our Services consist of social sharing and communication with others. We use your Personal Data to enable sharing as described in the Services, including to enable you to find and link

to friends on the Services.

13. Share content or achievements; or invite friends

With your permission, we access your contacts to enable you to share content or achievements, including videos, with friends or other members, and to invite friends to use the Services.

14. When we provide you geographically relevant Services, offers, or advertising

We may use general location data to provide you with Services, offers or advertising that are relevant to your general location.

15. When you ask us to customize our Services

We use photos, videos, or other data you provide to us to customize our Services.

16. When we comply with Legal Requirements or Obligations, Law Enforcement, and for Public Safety Purposes (location-specific disclosures may apply)

We may use Personal Data in order to comply with laws, regulations, court orders, or other legal obligations or to assist in an investigation, to protect and defend our rights and property, or the rights or safety of third parties, to enforce our Terms, this Privacy Policy, or agreements with third parties, or for crime-prevention purposes.

How We Disclose Personal Data

We may disclose your Personal Data for the purposes as described in the prior section of this Privacy Policy, in the Location-Specific Disclosures section, and in the following ways:

1. Operation and Improvement of Services and User Experience

Internally to relevant departments within MyFitnessPal, in order to provide and improve Services, for marketing purposes, and for advertising.

2. To Service Providers and Vendors

With business partners, marketing partners, and vendors to provide, improve, and personalize the Services.

Notice for Apple Users

For Apple users, our iOS mobile apps share personal data with third parties as described in this Privacy Policy. We take measures to ensure such third parties provide privacy protections identical to or equal to those required under this Privacy Policy and apple's developer guidelines.

3. To Social Network Providers

With social network providers when we use social network widgets, buttons, or plug-ins in our Services.

4. To other MyFitnessPal Registered Users

With other users of the Services in the context of specific features that are social in nature. Additionally, any information you post or disclose in our community forums (e.g., Facebook, sponsored pages on the MyFitnessPal Blog) is public.

5. For Advertising and Marketing

With advertising and marketing partners for advertising and marketing purposes on MyFitnessPal's behalf and on behalf of third parties, including but not limited to Facebook.

6. For Certain Analytics and Improvement

With certain companies for purposes of analytics and improvement of the Services.

7. For Interest-Based Advertising

With companies involved in interest-based advertising, including web, mobile app and other advertising. This advertising consists of MyFitnessPal and third party ads that are personalized and displayed on our sites and apps and through other channels. For more information on how data is disclosed for advertising see interest-based advertising.

8. For Legal Compliance, Law Enforcement, and Public Safety Purposes (location-specific disclosures may apply)

With law enforcement, government or regulatory bodies, lawful authorities, or other authorized third parties in order to comply with laws, regulations, court orders, or other legal obligations or to assist in an investigation, to protect and defend our rights and property, or the rights or safety of third parties, to enforce our Terms of Use, this Privacy Policy, or agreements with third parties, or for crime-prevention purposes.

9. In the event of an actual or contemplated sale. (location-specific disclosures may apply)

With prospective or actual purchasers, investors, or successor entities in connection with a contemplated reorganization or an actual reorganization of our business, in connection with financing, a sale, or other transaction involving the disposal of all or part of our business or assets, including for the purpose of permitting the due diligence required to decide whether to proceed with a transaction, pursuant to assurances of sufficient data handling practices and safeguards.

Residents of the european economic area. Our disclosure is limited to situations where we are permitted to do so under applicable European and national data protection laws and regulations.

Legal Basis for Processing

This section addresses the legal basis for processing your data if you reside outside the United States (within the United States, you typically provide consent when you receive notice of this Privacy Policy in a website link or mobile app). Some processing is addressed in multiple sections because more than one legal basis may apply depending on the circumstances or service.

For the purposes of applicable data protection laws, MyFitnessPal, Inc. is the controller of the Personal Data you provide to us ("**Data Controller**"). As a Data Controller, we process the Personal Data we maintain about you in accordance with this Privacy Policy. If you have any questions or concerns regarding the processing of your Personal Data, or if you have questions regarding this Privacy Policy, please see our location-specific disclosures for appropriate contact information.

Note for Residents of the European Union: For more information on the Legal Basis for processing see the EEA location-specific disclosures.

We collect and process your Personal Data for a variety of purposes outlined in this Privacy Policy. In certain cases, separate consent is not required, including:

1. For the Performance of a Contract

To perform our contractual obligations to you in connection with the Services, including but not limited to account registration, fulfilling purchases you have made via the Services (including processing of payment), contacting you in relation to any issues with the Services, when you use or interact with a wearable or other connected device and in relation to location-based Services (including to provide you geographically relevant Services), to

connect you with friends across platforms, share content or achievements, or invite friends, when you ask us to customize our Services, where we need to collect Personal Data from third party sources and when you access third party products and services, where we collect data from third parties or publicly-available sources, or to aggregate and centralize data for the performance of the Services.

2. To Meet Legal Obligations

To comply with laws, regulations, court orders, or other legal obligations or to assist in an investigation.

3. For Legitimate Interests

To operate our business and provide the Services, other than in performing our contractual obligations to you for MyFitnessPal's "legitimate interests" for the purposes of applicable law - except where overridden by the interests or fundamental rights and freedoms that require protection of Personal Data.

For example, the following areas include processing covered by Legitimate Interests, subject to applicable law:

- **Communication**. To communicate with you regarding the Services, including to provide you important notices regarding changes to our terms and also to address your requests, inquiries, and complaints. We may send strictly necessary communications, including emails, even if you have opted out of receiving other MyFitnessPal emails or communications. These types of communications do not require consent. We also process your Personal Data for our legitimate interests when you communicate with us, including when you sign up for promotional materials and we have not asked you for your consent in that regard.

- **Respond to Your Requests**. To respond to your requests for technical support, online services, product information or to any other communication you initiate. This includes accessing your account to address technical support requests.

- **Promotional Messages**. We process your non-sensitive Personal Data to provide you with promotional messages and personalized marketing, including: when you communicate with us or sign up for promotional materials; when you participate in offers or programs; when you engage with our online communities or advertising; to provide you geographically relevant Services, offers, or advertising; when we aggregate and centralize data; and when we share Personal with our service providers and vendors.

- **Surveys**. To send you surveys in connection with our Services, unless commercial in nature. In those cases, a survey request may be sent to you if you have given us your consent to receive marketing from us.

- **Compliance with Law and Public Safety**. To assist in the investigation of suspected illegal or wrongful activity, including sharing information with other entities for fraud, loss, and crime prevention purposes. To protect and defend our rights and property, or the rights or safety of third parties.

- **Improvement and Development**. To develop, provide, enhance, and improve our Services and your experience, including to enable you to use the full range of our Services (e.g., processing of non-sensitive Personal Data related to your use or interaction with a wearable or other connected device that integrates with the Services; when you access third party products and services; when we collect, use, or otherwise leverage cookies, device IDs, general location data, data from the environment, and other tracking technologies; when you connect with us through social media; when we collect data from third parties or publicly-available sources; when we aggregate and centralize data; and when we share Personal Data with our service providers and vendors). For internal purposes related to certain research, analytics, innovation, testing, monitoring, customer communication, risk management, and administrative purposes.

- **Enforcing Terms and Notice**. To enforce our Terms or this Privacy Policy, or agreements with third parties.

- **Merger or Acquisition**. (location-specific disclosures may apply). To support a contemplated reorganization or an actual reorganization of our business, in connection with financing, a sale, or other transaction involving the disposal of all or part of our business or assets, including for the purpose of permitting the due diligence required to decide whether to proceed with a transaction.

Consent as a Basis for Processing

In some cases, we will ask for your consent to process your Personal Data. You may indicate your consent in a number of ways, including, as permitted by law, ticking a box (or equivalent action) to indicate your consent when (i) providing us with your Personal Data through our Services or a form (including enrolling in Promotions); or (ii) registering or creating an account with us. Due to different countries' laws governing consent for the collection and use of Personal Data, the requirements for consent will differ across regions. We may request your consent for a number of activities including:

1. MyFitnessPal Marketing and Communication

We may ask for your consent to contact you by email or push notifications about other offers, products, Promotions, or services that we think may be of interest to you and for other marketing purposes.

2. Sharing with Third Party Services

We may also ask for your consent to share your Personal Data with certain Third Party business partners in order to offer certain goods, services, or programs. To withdraw consent, please go to the preferences of the specific third party service or app.

3. Third Party Marketing

We may ask for your consent to provide Personal Data to allow third parties to contact you regarding their products, services, Promotions, or offers. Typically this is in conjunction with a sweepstakes or challenge (your consent for third party marketing is generally not a pre-requisite to participation. To withdraw consent, please go to the preferences of the specific third party.

4. Collecting Mobile Device IDs, Advertising IDs, and Data from Sensors

When you use our Mobile Apps we may ask for your consent to collect these (this consent may be captured at the operating system level). To change your consent status for this data, please go to the preferences of the Mobile App. If you choose not to provide this information, certain Services features may be unavailable or not function properly.

5. Processing Sensitive Personal Data

We may request your consent to process sensitive Personal Data. The Website or Mobile App may require this data to provide the Services, including when you use or interact with a wearable or other connected device that integrates with the Services. If you choose not to provide sensitive Personal Data (for example, specific kinds of Fitness and Wellness Data), certain features or Services may be unavailable or not function properly.

6. Research

We may request your consent to use your Personal Data for Research purposes. We may also request your consent to contact you to determine your interest to participate in certain Research initiatives and to share identifying results. For market research, we may ask questions on behalf of business partners and share your response with business partners.

7. Advertising

We use cookies, pixels (including email pixels), mobile device and advertising IDs, general location data, Fitness and Wellness Data, app or service usage data and data from third-party wearables, connected devices or sensors that integrate with our Services for purposes of interest-based and cross-app, cross-device advertising. The consent for which may be managed at the operating system level.

8. Transfer of Data

We transfer data to the United States and to other countries/regions for processing. We may request your consent for this transfer or the transfer, in other cases, may be justified by a legal basis other than consent.

9. Automated Processing

We may use some automated processing to provide our Services and to make recommendations in the context of specific services. This processing is strictly necessary for providing certain Services (and, in some cases, is the service itself) and is not covered by consent. Other automated processing is not significant either due to the nature of the data or the decisions being made or recommended, and so consent is not required. However, for automated processing that is significant and related to sensitive Personal Data, prior to sharing or using such data, we will first seek your consent. For the subset of automated processing included in ad profiling for ad targeting, you can change your consent status (for website services) by turning advertising cookies off as outlined in in our cookie and device id use section. For mobile apps, you can change your consent status by activating your Limit Ad Tracking or equivalent setting as described in our cookie and device id use section.

10. To Enable Social Sharing and Connect with Us on Social Media

Our Services consist of social sharing and communication with others. If you sign up for these Services, we may ask for your consent to use your information to enable sharing as described in the Service. We may also ask for your consent when you connect with us through Social Media.

11. Promotions

We may ask you for permission to use your Personal Data and Fitness and Wellness Data for special offers, events, sweepstakes, and other Promotions. We may use the Personal Data we collect during Promotions, to administer the Promotion, verify identity and age, and to communicate with you about the Promotion.

Social Sharing Settings

Within our Services there are four sharing settings: Private, Public, Friends Only, and Locked with a Key. MyFitnessPal is designed to help you along your fitness and wellness journey. As such, you are able to control what Personal Data you share and with whom you share it. We encourage you to adjust the sharing settings to best meet your objectives and sharing comfort level. In the interest of safeguarding your Personal Data, we have outlined some initial default sharing settings.

Default Sharing Settings

- **"Physical Stats," "Diary"** and **"Community Social Data"** are set as **Private.** "Private" means not shared with friends or other members. You can change this default status for some of your physical stats. Information that is "Private" by default includes, for example, your height, weight and BMI.
- **"Activity"** is set as **Friends Only.** "Friends Only" means visible to your friends in their news feed, but not shared with other members. You can change this default status if you want. Information that is set as "Friends Only" by default includes, for example, your friendships, news feed comments, completed food diaries, and workouts completed.
- **"Forum Posts"** are **Public.** "Public" means visible to all others using the service.
- **Lookup Information ("Let my friends find me"** and **"Profile"**) are set as Public. **"Let my friends find me"** allows people to see that you are on MyFitnessPal and easily add you as a friend (i.e., your account is discoverable by email address). We believe that social motivation helps you achieve your goals faster and allowing your friends to be able to find you is crucial to this experience. **"Profile"** information and picture is visible only to MyFitnessPal members who are logged in (age is Private on a member's profile by default). If you set your entire account as Private, your lookup information will no longer be available for your friends to find you (unless you otherwise indicate that desire within the Services).

Changing Your Sharing Preferences

Details on how to update your sharing preferences and the default settings for our Services are outlined within the sharing standard.

Note: When you share information from our Services externally with a SNS, the information you post is governed by their privacy policy and settings.

Interest-Based Advertising

Interest-based advertising is advertising that is targeted to you based on your web browsing and app usage over time and across websites or apps. Our advertising practices also include the creation and use of "audience segments." You have the option to restrict the use of information for interest-based advertising and to opt-out of receiving interest-based ads. Depending on where you access our website from, you may also be asked to consent to our use of cookies, including advertising cookies. Additional information on Audience Segments and our choices for interest- based advertising is found below.

- **Audience Segments.** We disclose various types of information for purposes of interest-based advertising, including for third party, interest-based advertising. This processing includes the use of Personal Data to create audience segments. These audience segments are then made available for interest-based advertising, including for third party advertising, on MyFitnessPal online properties. The audience segments are based on website visits, app usage data, Fitness and Wellness Data, online and offline purchasing behaviors, interaction with our ads or marketing emails, similar types of information, and in some cases, data from third parties.

  United States Note: The audience segments are made available for interest-based advertising for third party advertising on the MyFitnessPal Services.

- **Interest-Based Advertising Opt Outs, Choices, and Control.** For all of the interest-based advertising described above, including segments, you have the choice to not have your data used to target and serve you interest-based advertising-including third party advertising-regardless of where such ads might be served. These opt-outs require that strictly necessary cookies are not blocked by the settings in your web browser. We support the Self-Regulatory Principles for Online Behavioral Advertising of the digital advertising alliance in the US, the canadian digital advertising alliance in Canada, and the european digital advertising alliance in the EU. If you live in the United States, Canada, or the European Union, you can visit ad choices (US), your ad choices (Canada), or your online choices (EU) to find a convenient place to opt-out of interest-based advertising with participating entities for each region. These websites also provide detailed information about how interest-based advertising works. Opting out does not mean that you will no longer receive advertising from us, or when you use the Internet. It just means that the data collected from our website will not be used for interest-based advertising and that the advertising you see displayed on websites will not be customized to your interests. *Mobile App*. You may opt out of interest-based advertising on mobile devices by activating the "Limit Ad Tracking" or equivalent feature offered by your mobile platform. It will transmit a signal to us and to third-parties that indicates your data should not be used for interest-based advertising.

Our cookie and device id use section provides additional options for controlling the use of particular kinds of cookies, including advertising cookies. You may use our “advertising cookies” toggle in these settings to prohibit the collection and use of Personal Data in cookies for interest-based advertising.

Managing Preferences and Withdrawing Consent

You may at any time withdraw your consent with future effect and without affecting the lawfulness of processing of your Personal Data based on the consent you provided before you withdrew it, and exercise other controls regarding website and online data collection, interest-based advertising, your communication settings, and app preferences. Collection and use of Personal Data may be required for the Services to work.

We provide you several ways to manage your preferences:

Cookie Use and Controls

Cookies serve a wide variety of purposes. Cookies are pieces of data stored in your web browser that are transmitted to websites to remember your browser over time and distinguish it from other users. Cookies are used to personalize your web experience and for security, analytics, marketing, and interest-based advertising. Our cookies are placed and read by our web servers, while other cookies are placed and read by other companies’ web servers. Information on specific cookies is found on our website via the adchoices link. You can block and control cookies using the information noted in this section. If you block all cookies, certain functionality on our Website will not work.

One way to think about cookies is based on their function. The following settings will control our use of browser cookies, the use of IP address for tracking, and the collection and use of data for cookie-based, interest-based advertising.

[IN] **Required Cookies.** These strictly necessary cookies are used for core functionality, and recognize when you are signed in, are necessary for security, and enforce your privacy preferences. Without these cookies, some functionality on our Website may fail. You can block these cookies in your browser preferences.

[IN / OUT] **Functional Cookies.** These cookies help to improve the Website by allowing us to understand how the Website is used and how the Website performs. These cookies include analytics and measurement.

[IN / OUT] **Advertising Cookies.** These cookies help us and other parties personalize ads that are shown to you on the Services, as well as on other websites. If enabled, these

cookies will allow third parties engaged in interest-based advertising on our Website to recognize your browser software on other websites too.

IP Address Use

An IP address refers to an identifier assigned by a network to a computer, mobile device, Internet of Things (IoT) device, or routing device. IP addresses, for purposes of this Privacy Policy, include “public” IP addresses, such as the IP address for a home router that is visible to the Internet, as well as “local” IP addresses, which are IP addresses assigned to computers and mobile devices “behind” a router (such as a home router). Our advertising and analytics partners may use IP addresses to group or correlate devices for purposes of analytics, security and anti-fraud purposes, interest-based advertising, ad targeting, ad attribution, and limiting ad frequency.

You can choose not to have IP address used for purposes of advertising or analytics by using the cookie controls for “Advertising Cookies,” and “Performance/Analytics,” above.

Web Pixels or Beacons Use

Pixels are extremely small image files that, when loaded by your web browser, cause the browser to make a network request to the party corresponding to the pixel. If that party’s cookies are currently stored in your browser, those cookies will be transmitted with the request. Beacons can be used on web pages for advertising or to confirm the opening of a marketing email. When used in conjunction with cookies for interest-based-advertising, the cookie controls above can be used to control the purpose for which they are used.

HTML5 Local Storage

HTML5 Local Storage in the browser is different from cookies, but can be used for the same purpose (to pair a tracking ID to a particular web server with your web browser so that the web server can identify your web browser over time). You can control the purpose for which HTML5 Local Storage is used by using the cookie controls outlined above.

Social Network Interaction and Widgets

Social network widgets, buttons, and plug-ins on our Website passively transmit data regarding a social network’s members to that social network, even when a button is not clicked. These technologies may allow a social network (e.g., Facebook) to personally identify its members and to know the web pages its members have visited. This is true wherever social network buttons are embedded, regardless of whether a button is “clicked” or “pressed.” If you belong to a social network or use these categories of web services, you should review the privacy policies of those services to understand the nature of the data

that they collect and what, if any, options the service offers to control how data is collected and used. If you disable advertising cookies, the passive tracking associated with these buttons will be blocked on our sites.

Mobile Device Advertising IDs, Location, Sensor Data, and In-Range Device Data Use

Our Services may transmit Device IDs, general location data, and data from sensors to us and our partners, including our advertising partners.

- *Device IDs* include IDs associated with your mobile device carrier such as IMEI, MEID, IMSI; platform-specific IDs such as Android ID, Google AID, and Apple's IDFA; and IDs that are part of your device hardware, such as WiFi MAC address, and serial number. Exactly which Device IDs are transmitted can depend on your mobile device platform and the version of your operating system.
- *General Location Data*. Our Services may transmit general location data. General location data may be obtained from GPS services, cell tower triangulation, or known location of nearby WiFi access points.
- *Sensor and In-Range Device Data*. Our apps and Services may also collect Device IDs and network addresses (including IP addresses, MAC addresses, and SSIDs) from other, in-range or networked devices and WiFi Access Points.
- *How We Use Mobile Device Data*. We may use Device IDs, coarse location and general location data, and data from sensors, including the local network, (together with app usage data and Fitness and Wellness Data) for strictly necessary purposes; improving our apps and analytics; personalization and preferences; and cross-app, cross-device, interest-based advertising.

Withdraw Your Consent for Use of Your Mobile Device IDs for Analytics and Advertising

Activating the "Limit Ad Tracking," "Opt out of Ads Personalization," or equivalent setting from your mobile device will transmit a signal to us and any third parties that we use. When that signal is received by MyFitnessPal or third parties, it communicates your choice to not have Device IDs used for purposes of advertising or analytics. We honor the signal and require that our third party advertising and analytics partners do the same.

To the extent our App personalizes functionality for you, you can change these settings within the App, or reset to defaults by deleting and reinstalling the App.

Change Consent Settings for Communication Preferences

Consent for Email Communication: After signing up for email communications, you can choose to unsubscribe using the unsubscribe link in any commercial email we send. Please note that if you unsubscribe from “all emails” this means “all emails other than strictly necessary emails.” You will still receive email communications from us if they are strictly necessary to provide the Services or to confirm or validate a transaction, recover accounts, etc.

Mobile Push Notifications: You can manage the type of push notifications you receive from MyFitnessPal by modifying the settings within the App. For more information on how to update your push notification settings for our Services please visit here. You may also set your mobile device settings to not allow push notifications from us.

Transfers of Your Personal Data to Other Countries

The Personal Data MyFitnessPal processes, and all associated Services and systems, including registration, is housed on servers in the United States. If you are located outside of the United States, please be aware that Personal Data we collect will be processed and stored in the United States (the data protection and privacy laws in the United States may offer a lower level of protections than in your country/region).

By using our Services and submitting your Personal Data, you agree to the transfer, storage, and/or processing of your Personal Data in the United States. Where and as required, we will seek your explicit consent as outlined in this Privacy Policy.

Data Retention

We will retain your Personal Data for as long as you maintain an account or as otherwise necessary to provide you the Services. We will also retain your Personal Data as necessary to comply with our legal obligations, resolve disputes, and enforce our agreements.

Where we no longer need to process your Personal Data for the purposes set out in this Privacy Policy, we will delete your Personal Data from our systems.

Where permissible, we will also delete your Personal Data upon your direction to delete your account. Information on how to make a deletion request can be found here or by contacting our support team.

If you have further questions about our data retention practices or would like to make a deletion request, please contact us through our support team.

Security

We implement technical and organizational safeguards to protect against unauthorized or unlawful processing of Personal Data and against accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Personal Data. Please be advised, however, that we cannot fully eliminate security risks associated with the storage and transmission of Personal Data.

Links to Other Websites. Please note that this Privacy Policy does not apply to the practices of companies that we do not own or control or to people that we do not employ or manage. Our Services may provide a link or otherwise provide access to Third Party Sites. We provide these links merely for your convenience. We have no control over, do not review, and are not responsible for Third Party Sites, their content, or any goods or services available through the Third Party Sites. Our Privacy Policy does not apply to Third Party Sites, and any data you provide to Third Party Sites, you provide at your own risk. We encourage you to review the privacy policies of any Third Party Sites with that you interact with.

Children

We do not knowingly collect Personal Data online from individuals under 18. If you become aware that a child has provided us with Personal Data without parental consent, please contact us through our support team. If we become aware that an individual under 18 has provided us with Personal Data without parental consent, we will take steps to remove the data and cancel that individual's account.

How to Contact Us

If you have any questions, comments, or concerns about how we handle your Personal Data, then you may contact us through our support team or write to us at:

MyFitnessPal, Inc.
ATTN: Privacy/Legal
100 Congress Avenue, Suite 400
Austin, TX 78701

You can also go to our location-specific disclosures to find a contact for the Data Protection Officer in your region, if applicable.

Location-Specific Disclosures

Residents of Argentina

You have the right to access your Personal Data, at intervals no shorter than six months entirely free of charge (unless there is proof of a legitimate interest in access in shorter periods, as established in Section 14, Sub-section 3 of Act No. 25,326).

We encourage you to contact us directly and allow us to work with you to address your concerns. Nevertheless, you have the right to lodge a complaint to the Agency of Access to Public Information, in its function of controlling agency responsible for enforcing Act No. 25,326.

Residents of Australia

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in Australia, you may request access to or correction of the Personal Data that we have collected about you. To access your Personal Data, please contact us through our support team or at the address listed above. We may charge for this service and will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

If you have any complaints regarding how we handle your Personal Data, please contact our support team or write to us at the address above with a detailed description of the complaint. UA responds to complaints as soon as practicable, and in any event, within the time limits prescribed by law.

Residents of Brazil

Legal Basis for Processing

We may rely on consent and/or another valid legal bases to process your Personal Data. Such legal bases may include: the legitimate interest of the controller or third parties; for compliance with a legal or regulatory obligation by the data controller; for the execution of a contract; for regular exercise of rights in court, administrative or arbitration proceedings.

How to Exercise Your Rights

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in Brazil, according to the LGPD, you have certain rights to the Personal Data that we have collected about you. To exercise your rights to your Personal Data, at any time, please contact us through our support team or at the address listed above. Your request will be fulfilled at no cost, and we will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

You have the following rights:

- **Right to confirmation of the existence of the Processing of Personal Data:** You have the right to ask us for confirmation on whether we are processing your Personal Data.
- **Right of access to your Personal Data:** You have the right to request access to the Personal Data and related information on that processing (e.g., the purposes of the processing, or the categories of Personal Data involved) subject to commercial and industrial secrecy.
- **Right to correction of incomplete, inaccurate or out-of-date data:** You have the right to have your Personal Data corrected, as permitted by law.
- **Right to anonymization, blocking or deletion of unnecessary or excessive data or data processed unlawfully.** Anonymization refers to the use of reasonable and available technical means at the time of the processing, whereby the data loses the possibility of direct or indirect association with you.
- **Right to data portability:** You have the right to receive the Personal Data that you have provided to us, in a structured, commonly used and machine-readable format, and you have the right to transmit that information to another controller, including to have it transmitted directly, where technically feasible, except for the data that has already been anonymized by us.
- **Right to erasure:** You have the right to ask us to delete your Personal Data, as permitted by law. This right may be exercised when you withdraw your consent on which processing is based. Note that we may retain a limited amount of data for a period of time - including, in situations that the storage of the information is authorized by law and or required by law.
- **Right to information about public and private entities with which MyFitnessPal has shared data** through communication, dissemination, international transfer, interconnection of personal data or shared processing of banks of personal data by them.
- **Right to information** about the possibility of denying consent and the consequences of such denial;
- **Right to withdraw consent:** You have the right to withdraw your consent to our processing of your Personal Data, as permitted by law, and where the basis for processing was based on your consent.
- **Right to object:** When the legal basis for processing your data is anything other than consent, you can object to the processing when it is not in compliance with the law.

- **Right to review automated processing decisions:** You have the right to review decisions taken solely on the bases of automated processing of personal data that affects your interests. This includes decisions intended to define your personal, professional, consumer or credit profile.

Changes to this Privacy Policy.

In order to enhance our Services it might be necessary to change this Privacy Policy from time to time. We therefore reserve the right to modify this Privacy Policy in accordance with the applicable data protection laws. Please visit our Website from time to time for information on updates to this Privacy Policy.

How to Contact Us.

If you have any questions, comments, concerns or need to exercise your rights, you may contact us through our support team.

Residents of China Mainland

How To Contact Us

If you have any questions, comments, or concerns about how we handle your Personal Data, please contact our support team, or write or call us at:

MyFitnessPal, Inc.
ATTN: Privacy/Legal
100 Congress Avenue, Suite 400
Austin, TX 78701

Data Transfer

Principally, Personal Data collected in China Mainland will be stored within China Mainland. However, we provide Services through resources and servers located globally (including the United States), which means your Personal Data may be transferred to or accessed within another country/region outside of China Mainland. The data protection and privacy laws and principles in those countries/regions may not offer the same level of protection as those in China Mainland. Under those circumstances, MyFitnessPal will continue to protect your Personal Data in a manner consistent with what is expected under laws of China Mainland (e.g., we will obtain your consent to transfer your Personal Data, or de-identify the Personal Data before transfer).

Withholding Information

You may choose not to provide MyFitnessPal with your Personal Data. However, if you choose not to provide your Personal Data, you may not be able to enjoy the full range of Services.

Residents of Colombia

How to Exercise Your Rights

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. You have certain rights to the Personal Data that we have collected about you. To exercise your rights to your Personal Data, please contact us through our support team or at the address listed below. We will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

- **Right to access your Personal Data:** You have the right to access, free of charge, your Personal Data being processed by us.
- **Right to know, update, and rectify your Personal Data:** You have the right to correct your Personal Data, as permitted by law.
- **Right to request proof of your consent:** You have the right to request proof of the consent granted to us for the processing of your Personal Data, where consent was required to process the information.
- **Right to withdraw your consent or to request the suppression of your Personal Data:** You have the right to withdraw your consent or request that we suppress your Personal Data, as permitted by law.
- **Right to file complaints:** You have the right to file complaints before the Superintendence of Industry and Trade for any kind of infringement to privacy laws.

Additional Use of Personal Data

Additional use of your Personal Data that is not described in this Privacy Policy will only take place as required by statute or when we have obtained your prior, explicit and informed consent.

How to Contact Us or Our Privacy Office

If you have any questions, comments, or concerns about how we handle your Personal Data, then you may contact us through our support team or write to us at:

MyFitnessPal, Inc.
ATTN: Privacy/Legal

100 Congress Avenue, Suite 400
Austin, TX 78701

Residents of the European Economic Area and the United Kingdom

If You Elect Not to Provide Personal Data

You may choose not to provide MyFitnessPal with your Personal Data. However, if you choose not to provide your Personal Data, you may not be able to enjoy the full range of Services.

How to Exercise Your Rights

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in the European Economic Area, you have certain rights to the Personal Data that we have collected about you. To exercise your rights to your Personal Data, please contact us through our support team or at MyFitnessPal, Inc. 100 Congress Avenue, Suite 400 Attention: Privacy/Legal Austin, TX 78701. Subject to applicable law and in exceptional circumstances only, we may charge for this service and we will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

You have the following rights:

- **Right of access to your Personal Data (Art. 15 GDPR)**: You have the right to ask us for confirmation on whether we are processing your Personal Data, and access to the Personal Data and related information on that processing (e.g., the purposes of the processing, or the categories of Personal Data involved).
- **Right to correction (Art. 16 GDPR)**: You have the right to have your Personal Data corrected if it is inaccurate and to have incomplete Personal Data about you completed, as permitted by law.
- **Right to erasure (Art. 17 GDPR)**: You have the right to ask us to delete your Personal Data, as permitted by law. This right may be exercised among other things: (i) when your Personal Data is no longer necessary for the purposes for which it was collected or otherwise processed; (ii) when you withdraw consent on which processing is based according to Art. 6 (1) (a) or Art. 9 (2) (a) GDPR and where there is no other legal ground for processing; (iii) when you object to processing pursuant to Art. 21 (1) GDPR and there are no overriding legitimate grounds for the processing, or when you object to the processing pursuant to Art. 21 (2) GDPR; or (iv) when your Personal Data has been unlawfully processed.

- **Right to restriction of processing (Art. 18 GDPR)**: You have the right to request the limiting of our processing under limited circumstances, including: (i) when the accuracy of your Personal Data is contested; (ii) when the processing is unlawful and you oppose the erasure of your Personal Data and request the restriction of the use of your Personal Data instead; or (iii) when you have objected to processing pursuant to Art. 21 (1) GDPR pending the verification whether the legitimate grounds of MyFitnessPal override your grounds.

- **Right to data portability (Art. 20 GDPR)**: You have the right to receive the Personal Data that you have provided to us, in a structured, commonly used and machine-readable format, and you have the right to transmit that information to another controller, including to have it transmitted directly, where technically feasible and as permitted by law.

- **Right to object (art.21 GDPR)**: You have the right to object to our processing of your Personal Data, as permitted by law. This right is limited to processing based on Art. 6 (1) (e) or (f) GDPR, and includes profiling based on those provisions. After which, we will no longer process your Personal Data unless we can demonstrate compelling legitimate grounds for the processing that override your interests, rights and freedoms or for the establishment, exercise or defense of legal claims. Furthermore, you have the right to object at any time to processing of Personal Data for direct marketing purposes.

How we may disclose your Personal Data

The GDPR and national laws of European Union member states implementing the GDPR permit the sharing of Personal Data relating to users who are residents of the European Economic Area with third parties only under certain circumstances. If you reside in the European Economic Area, we will only share your Personal Data as described in our Privacy Policy under the heading “How We Disclose Personal Data” if we are permitted to do so under applicable European and national data protection laws and regulations.

Health Data

Some Fitness and Wellness Data that we collect may be considered personal health data under the GDPR as interpreted by the European data protection supervisory authorities if recorded over a longer period of time. We process this type of data to provide you with additional information that you can incorporate into your evaluation of your progress toward your fitness and wellness objectives; it should not, however, be considered professional medical advice and is not intended to be used for diagnostic purposes.

Transfers of Your Personal Data to Other Countries

The Personal Data MyFitnessPal processes, and all associated Services and systems, including registration, are housed on servers in the United States. If you are located outside of the United States, please be aware that Personal Data we collect will be processed and stored in the United States (the data protection and privacy laws in the United States may offer a lower level of protections than in your country/region).

In order to use our Services, we may require you to agree to the transfer, storage, and/or processing of your Personal Data in the United States. In other situations where Personal Data is transferred outside of the European Economic Area (the EEA) or the United Kingdom, MyFitnessPal leverages other mechanisms for international data transfer including the European Commission-approved standard contractual clauses and consent. You have the right to request a copy of the applicable measure or further information by contacting us through our support team or at MyFitnessPal, Inc. 100 Congress Avenue, Suite 400 Attention: Privacy/Legal Austin, TX 78701.

Marketing Communications

Where we are legally required to do so, we ask you for your prior consent before providing you with promotional materials or information. You may revoke your consent at any time (this will not affect the processing of your Personal Data undertaken until the revocation). If you want to stop receiving promotional materials, etc., you can do so at any time as outlined in the change consent settings for communication preferences section.

Legal Basis for Processing Under the GDPR

In this section we provide information on the legal basis for our processing of your Personal Data as required by Art. 13 and 14 of the GDPR:

- When you register for an account or interact with our Services, such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.
- When you input Fitness and Wellness Data within our Services: For sensitive data (including health data and biometric data) as defined in the GDPR, we process such data on the basis of your prior consent, Art. 9(2)(a) GDPR.
- When you use or interact with a wearable or other connected device.
    - **For sensitive data** (including health data and biometric data) as defined in the GDPR, we process such data on the basis of your prior consent, Art. 9(2)(a) GDPR.
    - **For non-sensitive Personal Data which we need in order to perform the Services**, such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.

- **With regard to other non-sensitive Personal Data**, we process such data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to enhance our Services.
    - **For sensitive data** (including health data and biometric data) as defined in the GDPR, we process such data on the basis of your prior consent, Art. 9(2) (a) GDPR.
    - **For non-sensitive Personal Data which we need in order to perform the Services,** such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.
    - **With regard to other non-sensitive Personal Data,** we process such data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to enhance our Services.

- When you communicate with us or sign up for promotional materials, we process your Personal Data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to provide you with our promotional messages. Where we are required under applicable local law to obtain your consent for sending you marketing information, the legal basis is your consent, Art. 6(1)(a) GDPR.

- When you participate in special activities, offers, or programs.
    - **For sensitive data** (health data) (including health data or biometric data) as defined in the GDPR, we process such data on the basis of your prior consent, Art. 9(2)(a) GDPR.
    - **For non-sensitive Personal Data,** we process such data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to provide you with our promotional messages or to allow you to participate in our special activities, offers or programs or obtain prior consent, Art. 6 (1) (a) GDPR, if required by applicable law.
        - When you engage with our online communities or advertising and we actively collect your Personal Data in this context, we process such data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to provide you with our promotional messages.
        - When you access third party products and services and we obtain Personal Data about you from such third party sources:
            - **For Personal Data that we need in order to perform the Services** (e.g., if you pay for third party products through our Services), such

processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.

- **With regard to other Personal Data,** we process such data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to enhance your experience and to improve our Services.

- When you connect with us through social media:
  - **Where we collect your consent in such case,** for instance for marketing purposes, we process your Personal Data on the basis of your prior consent, Art. 6 (1) (a) GDPR.
  - **Where we do not collect your consent** in such case, we process your Personal Data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is providing you with better Services and to enable you to use the full range of our Services (Art. 6 (1) (f) GDPR).
- When we collect data from third parties or publicly-available sources:
  - **For Personal Data which we need in order to perform the Services** (e.g., for email verification purposes), such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.
  - **With regard to other Personal Data,** we process your Personal Data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is providing you with better Services and to enable you to use our Services more efficiently.
- When we leverage and/or collect cookies, device IDs, data from the environment, and other tracking technologies, we process your Personal Data on the basis of your consent, Art. 6 (1) (a) GDPR, and based on our legitimate interest, Art. 6 (1) (f) GDPR, to the extent permitted by applicable law.
- When we use coarse location and data from sensors, we process such data for strictly necessary purposes in order to perform our Services, Art. 6 (1) (b) GDPR); and for our legitimate interest in marketing and improving our Services, Art. 6 (1) (f) GDPR).
- When we aggregate or centralize data, such processing is either necessary for the performance of our Services, Art. 6 (1) (b) GDPR, or we process such data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our

legitimate interest is to provide you with better or customized Services and marketing.

- When you sign up for our Services that consist of social sharing and communication with others (including linking you to friends across platforms):
    - **Where we collect your consent** in such case, we process your Personal Data on the basis of your prior consent, Art. 6 (1) (a) GDPR.
    - **Where we do not collect your consent** in such case, such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.
- When you share content or achievements, or invite friends to use the Services:
    - **Where we collect your consent** in such case, we process your Personal Data on the basis of your prior consent, Art. 6 (1) (a) GDPR.
    - **Where we do not collect your consent** in such case, such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.
- When we provide you geographically relevant Services, offers, or advertising:
    - **Where we collect your consent** in such case, we process your Personal Data on the basis of your prior consent, Art. 6 (1) (a) GDPR.
    - **Where we do not collect your consent** in such case, for such Personal Data that we need in order to perform the Services, such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.
    - **Where we do not collect your consent in such case and where we do not need such data in order to perform the Services,** we process such data for our legitimate interest in offering you marketing and improving our Services, Art. 6 (1) (f) GDPR).
- When you ask us to customize our Services:
    - **Where we collect your consent** in such case, we process your Personal Data on the basis of your prior consent, Art. 6 (1) (a) GDPR.
    - **Where we do not collect your consent** in such case, such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR.

- When we disclose Personal Data to our affiliates and partners, and to our service providers and vendors:
    - **Where we collect your consent** in such case, we process your Personal Data on the basis of your prior consent, Art. 6 (1) (a) GDPR.
    - **Where we do not collect your consent** in such case, such processing is necessary for the performance of our Services, Art. 6 (1) (b) GDPR, or we process such data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to provide you with better Services and marketing.
- When we process or share Personal Data in the event of an actual or contemplated sale, we process such data for our legitimate interest in offering, maintaining, providing, and improving our Services, Art. 6 (1) (f) GDPR).
- When we conduct analytics, we process your Personal Data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to enhance your experience and to develop and improve our Services.
- When we investigate suspected illegal or wrongful activity, we process your Personal Data on the basis of our legitimate interest, Art. 6 (1) (f) GDPR, and our legitimate interest is to ensure compliance with legal requirements and law enforcement requests and for public safety purposes.

Right to Lodge a Complaint Before the Data Protection Authority

We encourage you to contact us directly and allow us to work with you to address your concerns. Nevertheless, you have the right to lodge a complaint with a competent data protection supervisory authority, in particular in the EU Member State where you reside, work or the place of the alleged infringement. You have the right to do so if you consider that the processing of Personal Data relating to you infringes applicable data protection laws.

Changes to this Privacy Policy

In order to enhance our Services it might be necessary to change this Privacy Policy from time to time. We therefore reserve the right to modify this Privacy Policy in accordance with the applicable data protection laws. Please visit our Website from time to time for information on updates to this Privacy Policy.

How to Contact Us or Our Privacy Office

MyFitnessPal, Inc. is the data controller responsible for the processing of your Personal Data in connection with the Services. In case of questions about the processing of your Personal Data please contact us at:

MyFitnessPal, Inc.
ATTN: Privacy/Legal
100 Congress Avenue, Suite 400
Austin, TX 78701

Residents of Hong Kong, SAR of China

- MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in Hong Kong, you may request access to or correction of the Personal Data that we have collected about you. To access your Personal Data, please contact us through our support team or at the address listed above. We may charge for this service and will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

- **Your Consent for Use or Sharing of Personal Data for Marketing Purposes.** You may choose not to provide MyFitnessPal with your Personal Data. However, if you choose not to provide your Personal Data, you may not be able to enjoy the full range of Services. MyFitnessPal may use your Personal Data to communicate with you about MyFitnessPal Services you have purchased or used and to notify you of other products, Promotions and services we think may be of interest to you. We may also share Personal Data with our Ad Partners, business partners, vendors and suppliers who are providing you with products and services for their marketing purposes. You may provide your consent through the methods described in the next section.

- **How to Indicate Your Consent and Opt-Out**. You may indicate your consent in a number of ways, including: (i) ticking a box to indicate your consent when providing us with your Personal Data through our Services or a form (including enrolling in Promotions); or ticking a box to indicate your consent when registering with us or creating an account with us. You may opt-out from receiving marketing communications at any time, free of charge, through the methods described here.

Residents of Indonesia, Malaysia, Philippines, Thailand and Singapore

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in Indonesia, Malaysia, Philippines, Thailand or Singapore, you may request access to, and modification, opposition, and deletion of the Personal Data that we have collected about you. To access your Personal Data, please contact us through our support team. Subject to

applicable law, we may charge for this service and will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

Residents of Japan

Operator of Japan Websites

MyFitnessPal operates the Service, and collects, uses and shares your Personal Data as outlined in this Privacy Policy.

How MyFitnessPal Uses Personal Data

MyFitnessPal may use your Personal Data to communicate with you about the Services you have purchased or used and to notify you of other products, promotions and Services we think may be of interest to you.

MyFitnessPal will use the Personal Data you provide at registration for the following purposes:

1. Communicating with you about the use of the Services.
2. Communicating with you about activities related to the Services.
3. Delivering information (including advertisements) on products, services.
4. Providing you with updates on new uses of your Personal Data.
5. Providing registration support.
6. Providing e-mail support.
7. Creating statistical and analytic information.
8. Other inevitably necessary communications to you.
9. Leveraging and/or collect cookies, device IDs, Location, data from the environment, and other tracking technologies.
10. Providing you geographically relevant Services, offers, or advertising.
11. Complying with Legal Requirements or Obligations, Law Enforcement, and for Public Safety Purposes.

We may also share Personal Data with our Ad Partners, business partners, vendors and suppliers. The sharing of Personal Data to these organizations may mean your Personal Data is transferred to third parties located outside of Japan.

You may provide your consent through the methods described in the next section.

Consent for Use and/or Sharing of Personal Data

If you reside in Japan, by using the Services you consent to the collection, use and transfer of your Personal Data with MyFitnessPal as outlined in this Privacy Policy. Further, Personal Data collected will be shared as outlined in this Privacy Policy.

You may choose not to provide MyFitnessPal with your Personal Data. However, if you choose not to provide your Personal Data, you may not be able to enjoy the full range of Services.

How to indicate your consent and opt-out

You may indicate your consent in a number of ways, including: (i) ticking a box to indicate your consent when providing MyFitnessPal with your Personal Data through the Services or a form (including enrolling in Promotions); (ii) or ticking a box to indicate your consent when registering or creating an account with MyFitnessPal. You may opt-out from receiving marketing communications at any time, free of charge, through the methods described here.

How to Contact Us

If you have any questions, comments, or concerns about how we handle your Personal Data, then you may contact us through our support team, write to us or call us at:

MyFitnessPal, Inc.
ATTN: Privacy/Legal
100 Congress Avenue, Suite 400
Austin, TX 78701

Residents of Mexico

By using the Services, you consent to the collection, use and transfer of your Personal Data (including sensitive personal data pursuant to Mexican law) for processing in the United States as described in this policy.

Access Requests

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in Mexico, you may request access to, modification, cancelation or opposition of the Personal Data that we have collected about you. To access your Personal Data, please contact us through our support team or at the address listed above. We may charge for this access service pursuant to applicable law and will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

Residents of New Zealand

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in New Zealand, you may request access to or correction of the Personal Data that we have collected about you. To access your Personal Data, please contact us through our support team or at the address listed above. We may charge for this service and will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

Residents of South Korea

MyFitnessPal Personal Data Items Collected

Mandatory: Email Address, Account Password, Billing Address, Gender, Date of Birth, postal code, IP address, browser history information, and cookies.

Optional: Email Address, Billing Address, Gender, Date of Birth, postal code, order history, phone number, IP address, browser history information, and cookies. Login and interaction information from social media and online communities.

Access Requests

MyFitnessPal takes steps to keep your Personal Data accurate and up to date. If you reside in South Korea, you may request access to, and modification, opposition and deletion of the Personal Data that we have collected about you. To access your Personal Data, please contact us through our support team or at the address listed below. Subject to applicable law, we may charge for this service and will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.

Data Retention and Destruction

Under applicable Korean law, your Personal Data must be retained for the following periods:

- Records regarding contracts or the cancellation of contracts, and records on payment and provision of goods:
    - **Reason of retention:** Act on Consumer Protection in Electronic Commerce Transactions, etc.
    - **Retention period:** five years
- Records on customer complaints or dispute resolution:

    - **Reason of retention:** Act on Consumer Protection in Electronic Commerce Transactions, etc.
    - **Retention period:** three years
- Communications confirmation data
    - **Reason of retention:** Communications Privacy Protection Act
    - **Retention period:** three months
- Records on electronic financial transactions:
    - **Reason of retention:** Electronic Financial Transaction Act
    - **Retention period:** five years

Method and Procedure for the Destruction of Personal Data

MyFitnessPal retains your Personal Data (i) for as long as you maintain an account or as needed to provide you the Services and/or (ii) as necessary to comply with our legal obligations, resolve disputes, and enforce our agreements. Personal Data is destroyed when it is no longer necessary for these purposes. The specific destruction process and method are as follows: (i) Personal Data printed on the paper is shredded, burned, pulped, pulverized, or incinerated; and (ii) Personal Data stored in electronic form is deleted using technology designed to prevent the recovery of the Personal Data.

How to Contact Us

If you have any questions, comments, or concerns about how we handle your Personal Data, then you may contact us through our support team, write to us or call us at:

MyFitnessPal, Inc.
ATTN: Privacy/Legal
100 Congress Avenue, Suite 400
Austin, TX 78701

Residents of Turkey

By using the Services, you consent to the collection, use and transfer of your Personal Data with MyFitnessPal as outlined in this Privacy Policy. Further, Personal Data collected will be shared as outlined in this Privacy Policy.

- **Information Security.** The Personal Data shared with MyFitnessPal will be protected using technical and organizational measures designed to protect your information

against unauthorized access, theft, and loss as required by article 12 of the Law on Protection of Personal Data no. 6698.

- **Personal Data Accuracy**. MyFitnessPal takes steps to keep your Personal Data accurate and up to date. You are responsible for the accuracy of the information you have provided to MyFitnessPal, and you understand that doing so is important in terms of exercising your personal data rights under the Law on Protection of Personal Data no. 6698 and other applicable legislation. To update your Personal Data, please contact us through our support team.
- **Access Requests**. If you reside in Turkey, you may request access to, and modification, opposition and deletion of the Personal Data that we have collected about you. To access your Personal Data, please contact us through our support team. Subject to applicable law, we may charge for this service and will respond to reasonable requests as soon as practicable, and in any event, within the time limits prescribed by law.
- **Data Retention and Destruction**. When you delete your account and/or when Personal Data is no longer needed to provide the Services or to comply with our legal obligations, resolve disputes, and enforce our agreements and/or the retention period under applicable law has expired, your Personal Data may be anonymized and continued to be used in that form.

Residents of the United Arab Emirates

If you reside in the United Arab Emirates, your use of the Services signifies your consent to the following:

- You affirmatively waive your material privacy rights under applicable laws;
- MyFitnessPal may disclose any information you provide us, including information you may consider private; and
- MyFitnessPal is not liable for any publication of information you provide us, including information you may consider private.

Please do not use the Services if you disagree with any part of this Privacy Policy.

Residents of the United States

We don’t sell Personal Data as defined by Nevada law.

Residents of California

If you are a resident of California, you have certain rights to the Personal Data that we have collected about you. Under California law, the exercise of these rights is subject to certain exemptions to safeguard the public interest (e.g., the prevention or detection of crime) and our interests (e.g., maintaining confidentially when legally required). We will comply with your request as soon as reasonably practicable. Requests to exercise your rights may be granted in whole, in part, or not at all, depending on the scope and nature of the request and applicable law. To prevent unauthorized access to your Personal Data, we take steps to verify an individual's right to the data - including requiring users to reach out to us directly from a verified email address, pass a challenge response, and/or confirm information associated with the account. Following verification of your identity, we will notify you if we are unable to fulfill your request and outline the reasons we are unable to honor your request at this time.

Your California Privacy Rights

You have the following rights:

- **Right of Access to Your Personal Data:** You have the right to ask us for confirmation on whether we are processing your Personal Data, and access to the Personal Data, as permitted by law. This may include what Personal Data we collect, use, or disclose about you.
- **Right to Deletion:** You have the right to ask us to delete your Personal Data, as permitted by law.
- **Right to Opt-out of "Sale" and Certain Sharing Practices:** You have the right to opt-out of certain data sharing practices with third parties who may use your Personal Data solely for their own purposes. Your right to opt-out is limited to information we "sell" to these third parties. "Sell" in this case does not mean providing data in exchange for money – *we don't do that*. "Sell" instead means the disclosure of data, including technical device data that does not identify you directly, when a third party might use that data for its own purposes, such as for personalized advertising. We do not have actual knowledge that we sell personal information of minors under 16 years of age.
- **Right to Non-Discrimination:** We will not discriminate against you, in terms of price or services that we offer, if you submit one of the rights requests listed above.

How to Exercise Your Rights

Exercise your rights (other than opt-out of "sale"): To exercise your rights to your Personal Data, please contact us through our support team or at the address listed below: MyFitnessPal, Inc., ATTN: Privacy/Legal, 100 Congress Avenue, Suite 400, Austin, TX 78701

Exercise your opt-out of "sale" rights: For instructions on how to exercise your rights, please visit our "do not sell my personal information" page.

Additional California Rights

California Civil Code Section 1798.83 permits California residents to request and obtain from us a list of what Personal Data (if any) we disclosed to third parties for that third party's direct marketing purposes in the preceding calendar year and the names and addresses of those third parties. Requests may be made only once a year and are free of charge.

Under Section 1798.83, we currently do not share any Personal Data with third parties for their direct marketing purposes. If we do decide to share your Personal Data with third parties for their marketing purposes, you may opt-out of this disclosure at any time by submitting a request to our support team, or in writing to:

MyFitnessPal, Inc.
ATTN: Privacy/Legal
100 Congress Avenue, Suite 400
Austin, TX 78701

It is important to note that this opt-out does not prohibit disclosures made for non-marketing purposes or for purposes of assisting us with our own marketing.

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